JERRY CHIGUMBU
versus
CAROLINE MAPOSHERE
and
TAKUNDA MAZURA
and
THE MINISTER OF LANDS, AGRICULTURE, WATER, FISHERIES
AND RURAL RESETTLEMENT N.O

HIGH COURT OF ZIMBABWE
DEMBURE J
HARARE; 18 & 25 February 2026

Civil Trial

V Makuku, for the plaintiff
1st defendant in person
2nd defendant in person
A Magunde, for the 3rd defendant

DEMBURE J: Litigants must take court proceedings seriously. It is a well-established rule that an extant order of a court of competent jurisdiction must be obeyed or given effect to unless it has been varied or set aside: *Magauzi & Anor* v *Jekera* SC 54/22. Open defiance of a valid and binding court order not only undermines the authority of the courts but also puts the entire system of the administration of justice into disrepute. Litigants who behave as if they are not subject to the authority of the law deserve censure by an abominable award of costs. This is a classic example of a matter which ought not to have detained the court this far. The conduct of the first and second defendants, who, without any valid defence and in flagrant disobedience of an order of a competent court, persisted in the occupation of the piece of land in question unperturbed, is reprehensible and must be condemned in the strongest terms.

This is an action for the eviction of the first and second defendants together with other ancillary relief instituted by the plaintiff on 24 August 2022. The plaintiff seeks the following remedy:

> "(a) Eviction of 1st and 2nd Defendants and all those claiming occupation through them from subdivision 24 of Kimcote Farm situate in Beatrice.

(b) Demolition of all dwelling houses and any structures erected by 1st and 2nd Defendants and all those claiming occupation through them in subdivision 24 of Kimcote Farm, Beatrice, within 48 hours of service of the Order of Court, failing which the Sheriff of the High Court shall be authorised and directed to demolish the said dwelling houses and structures.

(c) Cost of suit on attorney-client scale."

The first and second defendants defended the claim. As for the third defendant, he filed a consent to the relief sought in terms of a notice of filing lodged by his legal practitioners on 10 October 2024. The same position was adopted by Ms *Magunde* at the trial.

FACTUAL BACKGROUND

The following facts are common cause:

1. The plaintiff is a holder of an offer letter issued under the Land Reform and Resettlement Programme (Model A2 Phase II) in respect of Subdivision 24 of Kimcote situate in the District of Seke, Mashonaland East Province, measuring 40.00 hectares (*"the farm"*). The offer letter is dated 27 November 2018 and was issued by the then Minister of Lands, Agriculture, Water, Climate and Rural Resettlement in accordance with the provisions of the Agricultural Land Settlement Act [*Chapter 20:01*]. The farm is accordingly State-owned land.

2. The first and second defendants are in occupation of part of the farm allocated to the plaintiff.

3. The first and second defendants erected structures on the farm and have resisted all demands by the plaintiff to vacate the farm.

4. The said defendants' possession is without the plaintiff's consent.

5. The defendants failed to show that they had any lawful authority to occupy the State land in question in terms of s 3 of the Gazetted Land (Consequential Provisions) Act [*Chapter 20:28*].

6. On 20 November 2020, the first defendant was convicted by the Magistrates' Court at Chitungwiza for contravening s 3(1) of the Gazetted Land (Consequential Provisions) Act, that is, occupying gazetted State land, in

particular the piece of land in question, without lawful authority. She was sentenced to pay a fine of $9,000 or 3 months' imprisonment. In addition, she was ordered to vacate the farm before 23 November 2020, and the officer in charge of Beatrice Police Station was authorised to evict her. She did not appeal against the judgment and has remained in occupation thereof to date.

7. As for the second defendant, he was convicted on 19 November 2020 by the Magistrates' Court at Chitungwiza for contravening s 3 of the Gazetted Land (Consequential Provisions) Act, that is, for being in occupation of State land, in particular the farm in question, without lawful authority. He was sentenced to pay a fine of $2,000 or 30 days' imprisonment. In addition, he was ordered to vacate the farm within 30 days of the court's judgment. He also did not appeal against the judgment and has remained in occupation thereof to date.

In their plea, the first and second defendants alleged that they had benefited from the land in question through the Land Reform Programme in 2005 through the then responsible Minister. They further contended that they had always occupied the land in question, and the plaintiff could not have been allocated the same piece of land. They also challenged the plaintiff's *locus standi* to evict them from the farm.

After pleadings were closed, the parties duly filed their Pre-Trial Conference (*"PTC"*) documents. The PTC was held before ZHOU J, who referred the matter to trial on 15 October 2024. The issues for trial were captured as follows:

"1. Whether or not the Plaintiff has no *locus standi* to seek the eviction of the Defendants from the farm?
2. Whether or not the Plaintiff is the holder of lawful authority in respect of the land in dispute?
3. Whether or not the Defendants have lawful authority to remain in occupation of the farm?"

On 17 February 2026, the parties appeared before me for trial. The first and second defendants were then being represented by Mr *Mukanga*. The hearing was deferred to 18 February 2026 at 10:00 for the commencement of trial. Mr *Mukanga* went on to renounce agency, and when the first and second defendants came back on 18 February, they were now

self-actors. They confirmed that they were ready to proceed with their case as self-actors. Trial accordingly commenced. The plaintiff opened his case by testifying as a witness.

THE EVIDENCE

The plaintiff testified that he was seeking an order for the eviction of the first and second defendants from the land in question and the demolition of their illegal structures thereon. He confirmed that they were in unlawful occupation of his farm. He detailed how he acquired the farm, including the processes thereof that led him to obtain a recommendation letter from the Seke District Lands Committee on 10 November 2011. He was duly allocated the piece of land and shown its boundaries on the ground after it was pegged by the Ministry officials. He said that the land was then a bushy area. He erected a fence around the farm and also put up a structure. He stated that the defendants were not in occupation at the time. The said letter confirming the allocation was admitted as Exhibit 1.

He further stated that the first defendant came around 2018 and occupied a portion of his farm. She erected a fence on his farm. He made a report against her alongside other settlers for illegal occupation of the land at the Beatrice Police Station, but they refused to vacate the land. It was further stated that the second defendant had illegally settled on his farm around 2015. He said that he obtained his offer letter for the farm from the third defendant's office through the Provincial Lands office in Marondera in November 2018. The offer letter was admitted as Exhibit 2. The witness stated that he showed the defendants the offer letter, but they refused to vacate the property. He has been paying annual levies to the Manyame Rural District Council and the Ministry of Lands.

The plaintiff also testified that after he got the offer letter, he went and reported the matter to the Police. The defendants were arrested and arraigned before the Magistrates' Court at Chitungwiza, facing charges of occupation of gazetted state land without lawful authority. They were convicted and given varying sentences. In addition, they were also ordered by the court to vacate the farm. The court extract from the lower court for the convictions thereof at pp 28-30 was admitted as Exhibit 3. He also testified that the defendants have not complied with the court order, and they have turned violent. They are still in occupation in defiance of a court order and have been hiring more people to come and occupy his farm.

The plaintiff was not subjected to any meaningful cross-examination by the first defendant. The essential parts of his testimony were largely unchallenged. The plaintiff was clearly a credible witness. The 1st defendant simply concentrated on whether he showed her the offer letter at any time. She queried whether the plaintiff engaged her at the farm. She stated that they only met when they went to court. The witness maintained that he engaged her at the farm, and after she was convicted, she continued to erect structures. The plaintiff's evidence on the issues before the court, however, remained unchallenged.

As for the second defendant, he largely challenged the plaintiff on the authenticity of the offer letter, which he claimed was unlawfully obtained. He sought to take this line of questioning even though, in his pleadings, he had not challenged the authenticity of the offer letter. In any case, given the position taken by the allocating authority, the third defendant, the issue could not properly arise. The plaintiff maintained that he obtained the offer letter from the Ministry of Lands, and it is that authority that can verify the authenticity of offer letters.

After the witness's testimony, the plaintiff closed his own case. The defendants were advised of their rights to testify in their defence if they wished to do so. The first and second defendants were all duly sworn one after the other, but they all said they had nothing to say and closed their cases. They, therefore, failed to substantiate their defences. They did not even adopt their plea as they simply said they had nothing to say. The parties were invited to file their closing submissions. Only the plaintiff filed closing submissions. The first defendant, despite indicating that she would file by 20 February 2026, did not file anything. The second defendant said that he had nothing further to say.

THE LAW AND ITS APPLICATION TO THE FACTS

It is trite that in action proceedings, parties must adduce oral evidence to substantiate their respective pleaded positions. In civil proceedings, the standard of proof is the balance of probabilities. The *onus* can only be discharged by the parties giving evidence. *Viva voce* evidence must be led. Thus, in *Brooker* v *Mudhanda & Anor; Pierce* v *Mudhanda & Anor* SC 5/18 at pp 13-14, GOWORA JA (as she then was) aptly held that:

> "**When one speaks of the need to discharge an *onus*, it immediately becomes clear that there is an evidentiary burden that must be met**. There is no suggestion that such burden as required to be met was met by documents filed of record. There were no affidavits placed before the court *a quo*. Neither of the parties led evidence." (*my emphasis*)

In this case, it was only the plaintiff who gave evidence. The defendants, on the other hand, did not give any evidence. They all said that they had nothing to say after taking their respective oaths. They did not adopt their pleas. It is trite that a plea is nothing without being adopted in evidence. A plea is not evidence and cannot establish a party's purported position at a trial if it is not adopted. The legal position was remarkably explained in *Jeffrey Sinyoro Moyo* v *The State* SC 124/25 at pp 17-19, where UCHENA JA, relating to the equivalent pleading in criminal proceedings being a defence outline, said:

> "In this regard, it must be noted that **the respondent did not establish any defence to the charge he was facing.** He elected to remain silent. He did not give evidence nor did he take the witness stand. At the hearing of this appeal, Mr *Coltart* sought to rely on the appellant's defence outline in the court *a quo*. **It only becomes evidence if it is adopted in testimony by an accused person.** In *A-G* v *Tarwirei* 1997 (1) ZLR 575 (S) at 577 B- F MCNALLY JA clearly pronounced that:
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> > "In the present case, it seems to me that the magistrate made the same error as was made at first instance in *R* v *Newcastle-upon-Tyne Justices, Ex p Hindle* [1984] 1 All ER 770 (QBD) at 777j-778b. He believed the cross-examiner as against the witnesses being cross-examined. The cross-examiner happened to be the accused in person. **But the error was to believe what he said while putting his case to the witnesses. This was not evidence. It was not adopted and accepted by the witnesses**. It was denied by them**. So it could only become evidence when the accused took the oath and made the statements under oath**.
> >
> > The defence case, as put in cross-examination, was that the mother had a grudge against the accused. He was a lodger whom she wanted to evict. So in order to get rid of her lodger she went to the extent of injuring her eight year old child's private parts with a cooking stick, severely enough to cause bruising. She then laid the blame for those injuries on the accused, and persuaded the injured child and her siblings to lie accordingly.
> >
> > This version was treated by the magistrate as if it had been given in evidence by the accused. Thus in his judgment he writes:
> >
> > > 'The accused person says that the complainant's mother said she would use a cooking stick on the complainant to prove sexual interference on the complainant by the accused person.'
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> > This is a fundamental misdirection. **The accused did not make that statement on oath. He was not cross-examined on it. He simply put it in cross-examination, and it was denied.** The magistrate could not decide the relative veracity of the two versions until he had heard both versions."
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> See also *S v Nyandoro* 1987 (2) ZLR 66 (S) at 68, where DUMBUTSHENA CJ aptly stated that:
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> > "**The defence outline is not evidence. It is merely an outline of what the evidence will be. Unsupported by evidence or admissions, it is nothing. The statement by defence counsel was meaningless."**
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> …
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> [41] In this case, there was no defence before the trial court and it could only draw adverse inference. In that regard, the trial Court cannot be faulted for finding the appellant guilty in light of the evidence which was before it. In the same vein, the court *a quo* cannot be faulted for

> upholding the decision of the trial Court. **It is clear in our law that a defence outline is not evidence. It only becomes evidence if it is adopted in testimony by an accused person.**" (*my emphasis*)

The above remarks would equally apply to this case. By not giving any evidence before me at the trial, it meant that there was, therefore, no evidence before the court from the defendants to challenge the plaintiff's claim. Their plea was nothing without them adopting it at the trial. It was meaningless. Their decision to state that they had nothing to say meant that they completely failed to defend the claim. Technically, it rendered the plaintiff's claim unopposed. There could not, therefore, be any triable issues that could properly be determined.

In any event, the plaintiff's evidence clearly established that he was allocated the farm in question. That he is a lawful holder of a valid offer letter over the farm from the third defendant was common cause. The offer letter was admitted as Exhibit 2. That resolves the question of *locus standi*. It is settled that the holder of a valid offer letter granted by the State in respect of State-owned land has the *locus standi* to seek the eviction of any illegal occupier. The offer letter gives him the exclusive right to occupy and utilise the piece of land. This has long been established. See *McGregor* v *Saburi & Ors* HH 33/11, where CHIWESHE JP (as he then was) had this to say:

> "The holder of an offer letter has authority granted by the owner of the land, that is the State, to occupy and utilize the land in question. He has a right and a legitimate interest to access the property. That right is enforceable against any other person who may seek to deprive him of it or frustrate his enjoyment of the same. **The holder of an offer letter is perfectly entitled to seek an eviction order against persons who may illegally be in occupation of such property**. He may not however, take the law into his own hands and act without a court order. **The offer letter confers upon its holder the "*locus standi*" to approach the courts for appropriate relief, contrary to the applicant's assertions. In my view the right to evict illegal occupiers is not limited exclusively to the State or the responsible Minister as the applicant would have us believe; it extends to the beneficiaries as well**." (*my emphasis*)

The legal position had been put beyond any doubt by the Supreme Court in *Commercial Farmers Union & Ors* v *The Minister of Lands and Rural Resettlement & Ors* SC 31/10 at p 29, where CHIDYAUSIKU CJ (as he then was) held that:

> "The holder of an offer letter, permit or land settlement lease has a clear right, derived from an Act of Parliament, to take occupation of acquired land allocated to him or her in terms of the offer letter, permit or land settlement lease. **No doubt the Legislature conferred on the holder of an offer letter, permit or land settlement lease the *locus standi*, independent of the Minister, to**

> **sue for the eviction of any illegal occupier of land allocated to him or her in terms of the offer letter, permit or land settlement lease**. (*my emphasis*)

There is no doubt that the plaintiff was entitled to seek the ejectment of the defendants from the farm. The offer letter gives him such *locus standi in judicio*. There was no dispute that he did not consent to the occupation of his farm by the defendants. The fact that the defendants were in unlawful occupation of the farm was not in dispute. The defendants did not lead any evidence. They did not establish any right of retention or lawful authority to occupy gazetted State land issued by the third defendant in terms of s 3 of the Gazetted Land (Consequential Provisions) Act. That the first and second defendants are illegal occupiers was further buttressed by Exhibit 3, the court extract of their criminal convictions. In terms of the provisions of s 31(3)(a) of the Civil Evidence Act [*Chapter 8:01*], where it is proved that the defendants have been convicted of a criminal offence, it shall be presumed, unless the contrary is established, that they did all acts necessary to constitute the offence of illegally occupying State land without lawful authority. They did not rebut that presumption. I associate myself with the remarks by CHIRAWU-MUGOMBA J in *French & Smith t/a Customs Services* v *Cache & Anor* HH 603/23, where she correctly observed that:

> "In *casu*, the criminal conviction has not been denied. No appeal is pending in the criminal courts and it is surprising that Mr *Tembani* chose to challenge the conviction in this forum. The conviction and the sentence has been proved by the criminal record book extract. Therefore, the presumption in s 31(3)(a) above applies."

The proof of the defendants' convictions for illegal occupation of the same land tendered by the plaintiff and not disputed clearly established the plaintiff's case for their eviction. Compounded by the fact that they did not give evidence, the defendants have nothing to stand on. The proof of their conviction further contains extant orders of the lower court ordering them to vacate the piece of land in question within the specified time. That time has long passed. The criminal court had the competent jurisdiction to issue those eviction orders in terms of s 3(5) of the Gazetted Land (Consequential Provisions) Act. The legal position was affirmed in *Commercial Farmers Union & Ors* (*supra*) at p 22, where the Supreme Court stated as follows:

> "Section 3(5) of the Act does not confer on the individual applicants the right to remain in occupation until conviction. Section 3(5) of the Act simply directs the presiding magistrate in criminal proceedings for a contravention of s 3 of the Act to issue an eviction order**. It gives the magistrate jurisdiction or power, which he or she would not otherwise have, to issue an**

> **eviction order**. Generally speaking, magistrates in criminal proceedings have no jurisdiction to issue an eviction order against an accused person upon conviction. **Section 3(5) of the Act confers on the criminal court jurisdiction to issue an eviction order and directs the presiding magistrate to exercise the power**. Thus a proper reading of s 3(5) of the Act simply confers certain jurisdiction on the presiding magistrate." (*my emphasis*)

The first and second defendants have continued to defy the authority of the court as they remain in occupation of the farm illegally. I am at a loss as to the audacity of the defendants to openly and blatantly defy an extant and binding order of a court of competent jurisdiction. It is difficult to fathom. They have turned rogue. Equally, their structures erected in brazen defiance of the law are illegal structures and cannot stand. The court cannot lend itself to an illegality: *TM Supermarkets (Pvt) Ltd* v *Nkomo & Ors* SC 28/20.

DISPOSITION

I am satisfied that the plaintiff, who has the *locus standi in judicio*, has established his case for the relief sought. There is no doubt that the defendants are in unlawful occupation of the farm allocated to the plaintiff. They were evicted by an order of the Magistrates' Court and have remained defiant to this date. Their acts are a direct attack on the rule of law and must be treated as a serious offence. The court cannot assist them in committing a criminal offence. I associate myself with the remarks by CHIDYAUSIKU CJ (as he then was) in *Commercial Farmers Union & Ors* (*supra*) at p 25-26, where he concluded:

> "This Court, or any other court for that matter, has no jurisdiction to authorise the doing of that which Parliament has decreed would constitute a criminal offence. Put differently, a **court of law cannot authorise an individual to commit a criminal offence**.
>
> … **A court of law has no jurisdiction to authorise the commission of a criminal offence.**" (*my emphasis*)

The first and second defendants have no lawful right to seek the protection of the court. This is a court of law. It cannot condone the unlawful and contemptuous conduct exhibited by the defendants. They have no lawful right to occupy the farm without lawful authority and to erect any structures thereat. The plaintiff's claim ought to succeed.

It is trite that costs are a matter within the discretion of the court. The general rule is that costs should follow the cause. Mr *Makuku* moved for punitive costs to be awarded against the first and second defendants, taking into account their conduct. It is trite that costs on a legal

practitioner and client scale can only be granted in exceptional circumstances. This position was restated in *Dongo* v *Naik* & *Ors* SC 52/20 at p.11, where it was held that:

> "It is settled law that costs are at the discretion of the court. The award can only be set aside where the discretion was not exercised judiciously. It is also settled that **costs on a higher scale are granted in exceptional circumstances. The grounds upon which the court would be justified to make an award for costs on a legal practitioner and client scale include dishonest or malicious conduct, and vexatious, reckless or frivolous proceedings by and on the part of the litigant concerned**." (*my emphasis*)

I accept that the first and second defendants' conduct must be censured by an award of costs on a higher scale. They have abused the court process to simply delay the inevitable. They were ordered to vacate the land in question by an order of a competent court. They have openly defied the order and have stayed put for over five (5) years as if nothing happened. The plaintiff had to seek the aid of this court to have them ejected and their illegal structures destroyed. They defended the action. In doing so, they raised a frivolous or vexatious defence and sought to play football with the court. At the trial, they opted not to give any evidence to substantiate their defence. This rendered their plea nothing before the court. They clearly wasted the court's time and the judicial resources which ought to be used for worthy causes. The plaintiff was also made to suffer completely unnecessary legal costs. The court must come down hard on such antics. A punitive award of costs is, therefore, proper and just in this case.

Accordingly, it is ordered as follows:

1. The first and second defendants and all those claiming occupation through them shall vacate subdivision 24 of Kimcote Farm situate in Beatrice upon service of this order.
2. The first and second defendants and all those claiming occupation through them shall demolish all their dwelling houses and any structures they erected in subdivision 24 of Kimcote Farm, Beatrice, within 48 hours of service of the Order, failing which the Sheriff of the High Court or his lawful deputy is hereby authorised and directed to demolish the said dwelling houses and structures.
3. The first and second defendants shall pay the costs of suit on a legal practitioner and client scale jointly and severally, the one paying, the other to be absolved.

DEMBURE J: ……..

Makuku Law Firm, plaintiff's legal practitioners
Civil Division of the Attorney-General's office, third defendant's legal practitioners